

CASSATION & ECHR · 1 OCT 2001

Cassation brief — Collorafi

TYPE	COURT	DATE	PARTIES
Appeal / remedy	The Court of Cassation	1 Oct 2001	From Bernard Collorafi and his companies

SUMMARY SHEET

Supplementary brief in cassation — SCP Bouzidi for Collorafi · 1 October 2001

Overview: supplementary brief filed before the Court of Cassation (France's highest court) by SCP Bouzidi on behalf of Mr Bernard Collorafi and the companies Les Pins, SEBOL and B & O, against McDonald's France, in support of appeal to the Court of Cassation no. X 00-14.447.

Key points

The brief recounts the franchisee's history: opening of a restaurant in the Carrefour shopping arcade in Antibes on 3 August 1987, lease-management agreement (location-gérance) and assignment to the company SEBOL on 31 August 1987, after resigning from a post as bank branch manager in Mougins and an unpaid nine-month training placement. Mr Collorafi is presented as the 1st franchisee of the network and his restaurant as the 45th in France. The document details the financial terms of the agreement, the operating results, the opening of competing restaurants and the formation of the company B & O. On the merits, it criticises the appeal judgment for failing to examine whether the appellant had suffered distinct non-material damage from having been “singled out” to the whole network by a circular of 14 January 1998, thereby depriving its decision of a legal basis with regard to article 1382 of the Civil Code.

Significance

The central document of the appeal to the Court of Cassation: it asks for the judgment of the Paris Court of Appeal of 8 March 2000 to be quashed and set aside, Mr Collorafi's final remedy before the French courts.

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Source: bernardcollorafi.org/en/documents/supplementary-brief-cassation-collorafi-appeal-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.